
Law of October 3, 1940 Concerning the Status of Jews

Loi du 3 octobre 1940 portant statut des Juifs

English Translation

Source: Journal Officiel de la République Française

No. 266, Friday, October 18, 1940

Published at Vichy (Allier)

Translated for History vs Hype

Translator's Note

This is an English translation of the Loi du 3 octobre 1940 portant statut des Juifs (Law of October 3, 1940, Concerning the Status of Jews), the first major piece of anti-Jewish legislation enacted by the Vichy regime. The law was drafted by Raphaël Alibert, Minister of Justice, and signed by Marshal Pétain and nine ministers of the Vichy cabinet.

The French text is taken from the Journal Officiel de la République Française, No. 266, published on October 18, 1940. The law was enacted on October 3 but not published until fifteen days later.

This translation follows the legal structure of the original: ten articles progressing from the racial definition of “Jewish” (Article 1), through comprehensive professional exclusions (Articles 2–6), to implementation mechanisms (Articles 7–10). Where French legal terminology has no exact English equivalent, the closest functional translation is used with the original French term noted.

Three features of the text deserve attention:

1. The law uses “race juive” (Jewish race) throughout, never “religion juive” (Jewish religion). This is a racial statute, not a religious restriction.
2. Article 4 uses the word “élimination” to describe removing Jews from professions. While this was standard bureaucratic French in 1940, the word is preserved in translation as “elimination” to reflect the original language.
3. No provision of this law references Germany, the armistice, or the occupation. It reads as a purely French initiative, because it was.

LAW CONCERNING THE STATUS OF JEWS

We, Marshal of France, Head of the French State,

The Council of Ministers having been heard,

Decree:

Article 1

For the application of the present law, any person descended from three grandparents of the Jewish race, or from two grandparents of the same race if their spouse is themselves Jewish, is regarded as Jewish.

Article 2

Access to and exercise of the public functions and offices listed below are forbidden to Jews:

1. Head of State, member of the Government, Council of State, Council of the National Order of the Legion of Honor, Court of Cassation, Court of Auditors, Corps of Mines, Corps of Bridges and Roads, General Inspectorate of Finance, Courts of Appeal, Courts of First Instance, Justices of the Peace, all professional courts and all elected assemblies;
2. Officials of the Department of Foreign Affairs, secretaries-general of ministerial departments, directors-general, directors of central ministry administrations, prefects, sub-prefects, secretaries-general of prefectures, inspectors-general of administrative services at the Ministry of the Interior, civil servants of all grades attached to all police services;
3. Residents-general, governors-general, governors and secretaries-general of the colonies, inspectors of the colonies;

4. Members of teaching bodies;
5. Officers of the Army, Navy, and Air Force;
6. Administrators, directors, secretaries-general in enterprises receiving concessions or subsidies from a public authority, positions appointed by the Government in enterprises of general interest.

Article 3

Access to and exercise of all public functions other than those listed in Article 2 are open to Jews only if they can invoke one of the following conditions:

1. To hold the Veteran's Card of 1914–1918 or to have been mentioned in dispatches during the 1914–1918 campaign;
2. To have been mentioned in dispatches during the 1939–1940 campaign;
3. To be decorated with the Legion of Honor for military service or with the Military Medal.

Article 4

Access to and exercise of the liberal professions, independent professions, functions assigned to ministerial officers and to all auxiliaries of justice are permitted to Jews, unless public administrative regulations have fixed a determined proportion for them. In that case, the same regulations shall determine the conditions under which the elimination of excess Jews shall take place.

Article 5

Jews may not, without condition or reservation, exercise any of the following professions:

Directors, managers, editors of newspapers, magazines, agencies, or periodicals, with the exception of publications of a strictly scientific character.

Directors, administrators, managers of enterprises engaged in the manufacture, printing, distribution, or presentation of cinematographic films; film directors and directors of photography, screenwriters, directors, administrators, managers of theaters or cinemas, entertainment producers, directors, administrators, managers of all enterprises related to radio broadcasting.

Public administrative regulations shall determine, for each category, the conditions under which public authorities may ensure compliance by the relevant parties with the prohibitions pronounced in the present article, as well as the sanctions attached to these prohibitions.

Article 6

Under no circumstances may Jews be members of organizations charged with representing the professions referred to in Articles 4 and 5 of the present law or with ensuring their discipline.

Article 7

Jewish civil servants covered by Articles 2 and 3 shall cease exercising their functions within two months following the promulgation of the present law. They shall be entitled to claim their pension rights, if they meet the conditions of length of service; to a proportional pension, if they have at least fifteen years of service; those unable to invoke

either of these conditions shall receive their salary for a period to be determined, for each category, by a public administrative regulation.

Article 8

By individual decree issued by the Council of State and duly justified, Jews who, in the literary, scientific, or artistic domains, have rendered exceptional services to the French State, may be relieved of the prohibitions provided for by the present law.

These decrees and the grounds justifying them shall be published in the Journal Officiel.

Article 9

The present law is applicable to Algeria, to the colonies, protectorate countries, and mandated territories.

Article 10

The present act shall be published in the Journal Officiel and executed as a law of the State.

■ ■ ■

Done at Vichy, October 3, 1940.

Ph. Pétain.

By the Marshal of France, Head of the French State:

The Vice-President of the Council, Pierre Laval.

The Keeper of the Seals, Minister Secretary of State for Justice, Raphaël Alibert.

The Minister Secretary of State for the Interior, Marcel Peyrouton.

The Minister Secretary of State for Foreign Affairs, Paul Baudoin.

The Minister Secretary of State for War, General Huntziger.

The Minister Secretary of State for Finance, Yves Bouthillier.

The Minister Secretary of State for the Navy, Admiral Darlan.

The Minister Secretary of State for Industrial Production and Labor, René Belin.

The Minister Secretary of State for Agriculture, Pierre Caziot.

Source

Journal Officiel de la République Française

No. 266, Friday, October 18, 1940

Pages 5323–5324

Published at Vichy (Allier)

The Statut des Juifs was enacted on October 3, 1940, and published in the Journal Officiel fifteen days later on October 18. It was the first major piece of anti-Jewish legislation passed by the Vichy government. The law was drafted without German pressure or instruction; it was an autonomous act of the French State.



History vs Hype